



U.S. Department
of Transportation

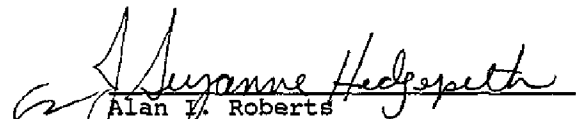
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8538 (EXTENSION)
FIRST REVISION May 31, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8538 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan J. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN - 7 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Hercules, Inc.
Wilmington, DE

November 30, 1993

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 8538
(FIRST REVISION)

MAY 31 1990

1. Hercules Incorporated, Wilmington Delaware, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulation to offer packages prescribed herein of liquid high explosives for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of liquid high explosives in DOT Specification 15M packagings in which the inner copper containers and the rubber boots have been replaced with polyethylene containers, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Atlas Powder Company, Dallas, Texas -PTE-1.

2. BASIS. This exemption is based on Hercules Incorporated's application dated March 9, 1990, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and 107.105 and the public proceeding thereon:

Atlas Powder Company's application dated March 9, 1990.

3. HAZARDOUS MATERIALS (Descriptor and class. Liquid high explosive, classed as Class A explosive.

4. PROPER SHIPPING NAME (49 CFR 172.101). High explosive, liquid.

5. REGULATION AFFECTED. 49 CFR 173.62; 178.177.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 15 M container for desensitized liquid explosives, except that the inner copper containers and rubber boots are replaced by polyethylene jugs and bags. The jugs must be of 2 gallon capacity and constructed as described in the application. They must be capable of passing the test described on the sheet titled "PE CONTAINER DROP TEST" in the application. The jugs must be closed with rubber stoppers secured in place with pressure sensitive tape.